

Form No: HCJD/C-121.

Order Sheet

IN THE LAHORE HIGH COURT LAHORE

JUDICIAL DEPARTMENT

Criminal Revision No. 20366 of 2026

(Abdul Basit v. Senior Special Judge, Anti-Corruption Court, Lahore, etc.)

ORDER

S.No. of order/ proceeding	Date of order/ proceeding	Order with signatures of Judge, and that of parties or counsel, where necessary.
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09.04.2026 Mr. Mian Shahid Ali Shakir, Advocate for the petitioner.

This petition, filed under Section 10 of the Pakistan Criminal Law Amendment Act 1958 (“**Act of 1958**” or “**PCLA Act**”) read with Sections 435 and 439 of the Code of Criminal Procedure 1898 (“**Code**” or “**Cr.P.C**”), has been preferred by Abdul Basit (“**petitioner**”), who seeks setting aside of order dated 17.03.2026 (“**impugned order**”) passed by learned Senior Special Judge, Anti-Corruption, Punjab, Lahore (“**Special Judge**” or “**Anti-Corruption Court**”), whereby instead of adjudicating the matter on merits, the learned Anti-Corruption Court transferred the *lis* pending before it and entrusted/sent the same to the Court of learned Special Judge, Anti-Corruption Rawalpindi (“**Court at Rawalpindi**”), and directed the parties to appear before the said court at Rawalpindi for further adjudication on the matter.

2. Succinctly, petitioner got instituted a crime report, bearing FIR No. 1585 of 2024 dated 17.12.2024, for offences under Section 7 of the Anti-Terrorism Act 1997 (“**ATA**” or “**Act of 1997**”), Section 302, 148, 149 and 109 of the Pakistan Penal Code 1860 (“**PPC**”) and Section 13-2(b) of the Punjab Arms Ordinance 1965 (“**Arms Ordinance**”), registered with police station Gujjar Khan, Rawalpindi (“**initial crime report**”) for the allegations contained therein.

After the registration of the initial crime report, the medical officer concerned conducted Medico Legal examination of the injured Abdul Rehman at THQ Hospital/Gujar Khan, Rawalpindi, and prepared the Medico Legal Certificate (“**MLC**”), and after his demise, conducted autopsy at the same hospital, and prepared the Post-Mortem Report (“**autopsy report**”). Subsequent thereto, it allegedly transpired that the MLC and autopsy report were tampered with. As such, the matter was reported to the Anti-Corruption Establishment (“**ACE**”). After conducting an inquiry, ACE registered crime report bearing FIR No. 75 of 2025 dated 28.11.20225, for offences under Section 161 and 162 of the Pakistan Penal Code 1860 (“**PPC**”) read with Section 5(2) of the Prevention of Corruption Act 1947 (“**PCA**” or “**Act of 1947**”), at police station DACE, Punjab, Lahore (“**crime report**” or “**FIR**”). Thereafter, apprehending his arrest, present respondent No. 5 filed a bail before arrest petition before the learned Anti-Corruption Court. The pre-arrest bail petition of present respondent No. 5 was pending adjudication when the learned Anti-Corruption Court situated at Lahore took cognizance of its lack of jurisdiction and eventually passed the impugned order, thereby transferring the matter to the Court at Rawalpindi. Hence, this petition.

3. Arguments heard; record perused.

4. It is an admitted position, as conceded by all the learned counsels appearing before this Court, that the entire episode pertaining to the commission of offences as mentioned in the initial crime report transpired in the territory of the city of Rawalpindi, the medical examination of the injured, and after his demise, his autopsy, were conducted in the same city, and even the accused persons

nominated in the crime report hail from, and work, in the stated region. Despite that, the crime report was registered at Lahore. This raises an important question of law: whether the Court, outside whose jurisdiction the incident occurred, still possesses jurisdiction to try the purported culprit brought before it in ordinary circumstances?

5. Before delving any further, it goes without saying that there is no cavil to the proposition of statutory interpretation that laws are to be construed as a harmonious whole,¹ so that no provision thereof is rendered redundant.² The statutory scheme of the law was examined in light of the stated principles, and while doing so, it emerged that the special procedure governing jurisdiction of a Special Judge, established for the purpose of trying offences under the Act of 1947, is regulated by the Act of 1958. Through its Section 4, the Act of 1958 confers jurisdiction on Special Judges to the limited extent of such territorial limits as fixed by the government concerned. The provision further goes on to state that a Special Judge can only take cognizance of any offence committed or deemed to have been committed within such territorial limits. This provision is followed by Section 6, which stipulates that the provisions of the Code shall apply to all proceedings under the Act of 1958, with some exceptions that are detailed therein. The provision of Section 6 *supra* starts with a non-obstante clause and thereby shows the intent of the Legislature that it shall have an overriding effect on the provisions of the Code,³ therefore, to the extent of the exceptions detailed therein, or in case of a conflict

¹ See “*Waqar Zafar Bakhata v. Hajid Mazhar Hussain Shah*” (PLD 2018 Supreme Court 81); and, “*Ali Haider Khan v. Province of the Punjab*” (2016 PTD 2525 Lahore).

² See “*District Bar Association, Rawalpindi v. Federation of Pakistan*” (PLD 2015 Supreme Court 401).

³ See “*Rajby Industries Karachi v. Federation of Pakistan*” (2023 SCMR 1407); “*Muhammad Iltaf Khan v. Basbeer*” (2022 SCMR 356); and, “*Chandavarkar S.R. Rao v. Ashalata S. Guram*” (1986 (4) Supreme Court Cases 447).

between the provisions of the Act of 1958 and the Code,⁴ the Act of 1958 will override the provisions of the Code. The Code, in its Section 177, states, and thereby commands a similar spirit to Section 4 of the Act of 1958, providing that ordinarily every offence shall be inquired into and tried by a Court within the local limits of whose jurisdiction the offence was committed. These provisions, when read as a whole, in their essence and spirit, place a restriction when it comes to the ability of a Court to take cognizance when the offences have not been committed within its allocated territorial limits. In other words, it follows that if a Court lacks territorial jurisdiction over a matter, then it cannot ordinarily proceed with a case since it is not vested with the legal authority or power to hear and adjudicate on the matter and decide the same.

6. Reverting to the merits of the case. There is no dispute *qua* the place of occurrence, and no consequence ensuing from the initial crime ever stepped out of bounds from the territorial jurisdiction of the city of Rawalpindi. In addition thereto, no extraordinary circumstances warranting circumventing the jurisdiction of the Court at Rawalpindi existed either; therefore, the learned Special Judge was correct in his finding that he lacked jurisdiction to adjudicate on the matter and being the Senior Special Judge, he had correctly exercised his powers to transfer the matter pending before him to a court ordinarily having territorial jurisdiction, i.e., the Court at Rawalpindi.

7. As a consequence thereof, this Court finds no illegality, irregularity, or jurisdictional defect in the

⁴ See “*Sui Northern Gas Pipelines Ltd. (SNGPL), Islamabad v. S.K. Pvt. Limited*” (2025 SCMR 570), wherein it was observed that the latin term “*generalia specialibus non derogant*” connotes that ‘*things general do not derogate from things special*’, and based on the said observation, the honourable Supreme Court of Pakistan went on to hold that the routine tenet of statutory interpretation is that where there is a conflict between special law and general law, the special law prevails.

impugned order dated 17.03.2026. Resultantly, this petition stands **dismissed** while invoking the doctrine of “*limine control*”.⁵

(MUHAMMAD JAWAD ZAFAR)
JUDGE

Ejaz*

Approved for Reporting

JUDGE

⁵ See “*Asif Saleem v. Chairman Bog University of Lahore*” (PLD 2019 Lahore 407).